EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

Can a Get Have Conditions?

Even HaEzer, Gittin 143:1-5

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 143, Seifim 1-5 **Shiur:** A Dayanut shiur by Dayan Daniel Kada, a Wednesday in May 2023

These notes are based on an automatic transcript of the recording.

Introduction: A "Geshmak" Siman

"Siman 143 is a really *geshmak* siman." It deals with a **get given on condition** (*get al tenai*). In most of it the Shulchan Aruch follows the **Rambam**, and the Rambam has "a very interesting *shita* which everyone disagreed with him on." Since the Shulchan Aruch does seem to rule like him, the Rabbi began with the Rambam, and only then turned to the Shulchan Aruch.

Part 1: The Rambam's Laws of Conditions

The four requirements

In **Hilchot Ishut, chapter 6**, the Rambam sets out that whenever kiddushin or gerushin are made conditional, the condition must meet four requirements, the ***mishpetei ha-tenaim***. If any one is missing, there is no condition.

1. **A doubled condition** (*tenai kaful*): stated both ways. "If you give me 100 zuz, you are divorced; if you don't, you are not divorced."
2. **The positive before the negative** (*hen kodem la-lav*).
3. **The condition before the act** (*tenai kodem la-ma'aseh*). It also cannot concern the past ("if you slept yesterday, you are divorced").
4. **Something possible to fulfil.** As the Gemara says, not "on condition that you go up to the sky." "Well, maybe nowadays that would work, because nowadays you can go to the moon," but in those days it was impossible.

What happens if a condition is invalid? The whole act is not void. Rather, it is **as if the condition was never made**, and the kiddushin or gerushin take effect without it.

"Im" and "me-achshav"

The Rambam continues, later in the same chapter: if a man said, "If I give you 200 zuz, you are betrothed," gave her the ring in **Nisan**, and paid the money only in **Elul**, the kiddushin take effect **only from Elul**. If someone else betrothed her in between, she is married to him.

So far everyone agrees there are two kinds of conditions:

Formula	When it takes effect
Im ("if you do this, you are divorced")	Only **later**, when the condition is fulfilled. A regular condition, needing all four requirements
Me-achshav ("from now") or ***al menat*** ("on condition that")	**Retroactively** (*le-mafre'a*) from the time of giving, once the condition is fulfilled. The Gemara says *al menat* is like saying *me-achshav*. Anything in between does not undo it

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Part 2: An Unfulfilled Condition (Seif 1)

The Shulchan Aruch begins with a point also found in the laws of kiddushin: if a condition is **not fulfilled**, it is as if nothing happened at all. It is not even ***re'ach ha-get*** (a "whiff" of a get). One might have argued that since there was some divorce here, it gives her the scent of a divorcee, so she could not return to him. No: if her husband later dies, she may even **marry a Kohen**.

The Maharit: who made the approach?

The **Ba'er Heitev** brings an interesting **Maharit**. The couple could not agree. He said: "Give me 200, and I'll divorce you." She said: "I won't give you 200. If you want to divorce, we divorce, but I'm not accepting the get if I have to pay." A stalemate. Later he gave her the get **without mentioning the condition**. Does she have to pay, and does the get work?

The Maharit: **if the husband approached her** later and said "I want to give you the get now," the get is without the condition, and she does not have to pay. **If she approached him** and said "let's get divorced now," the condition still stands, and she has to pay.

The source, as the **Pitchei Teshuva** explains, is the law of **buying and selling**. If buyer and seller could not agree on a price (the seller wanted 200, the buyer offered 100), and later one of them comes back and the sale goes through without mentioning a price: if **the buyer** came back saying "I'm ready to buy," he has accepted the seller's price of 200; if **the seller** came back saying "I'm ready to sell," he has accepted 100. So too with gerushin: whoever propositions afterwards has accepted the other's terms.

The Pitchei Teshuva rejects this. This is not buying and selling; it is ***ma'aseh gerushin***, and what counts is what was said **at the time of the divorce**. "We may even have been to the Beth Din and we talked and we discussed," but even if it is the next morning, if at the giving no condition was mentioned, the Maharit would make her pay on the basis of yesterday's discussion. He brings a proof from the **Radbaz**: as long as the condition was not stated **at the time of the gerushin**, it is not a condition. She does not pay, whoever made the approach, and the get is kasher.

When the Beth Din forgets the condition

"Very interestingly, you should know this, because you are *sadrei gittin*" (those who arrange gittin): the Pitchei Teshuva brings the **exact opposite** in another case.

The husband comes to the Beth Din in the morning and says: "I'm ready to give the get, on condition that she pays me £200." The Rosh Beth Din says, "Fine." Then the woman comes in, they write and give the get, and **everyone forgets** to write or mention the condition. Does she have to pay?

Based on what we just learned, there was no condition at the time of giving. But here the Pitchei Teshuva says **she does have to pay**. In strong language, the husband says: "I only agreed, I only came to the Beth

Din, on the basis that I would be getting £200 from this. At the end of the day I'm getting nothing, so I didn't agree to this." Expressing his intention to the Beth Din, who arrange the get, makes it as if it were there at the time of the act. "It's as if I gave the get with the condition. If the *mesader ha-get* forgot to say it, it's his problem, not mine."

The Rabbi noted that the mechanism is interesting. One cannot hold the woman liable, since she was never told; one cannot hold the Beth Din liable, since it is only indirect (*grama*); and the husband cannot lose out, since a get must be given willingly. So his expressed intention carries through to the giving, even though the Beth Din did not say anything, and the woman does not need to know, just as a get can be given against her will.

The same sitting?

It obviously has to be in the **same context**. A student from Perth raised a real difficulty: a couple might come to the Beth Din for a discussion, or the husband might come alone, and the get is only done at the next sitting, which could be **six months later**.

The Rabbi's answer: if six months earlier he expressed his intention, he **still remembers it and is relying on the Beth Din**, entering the get "with that frame of mind," then it would seem to be the same. But **if everyone forgot, including him**, then it is a kasher get with no condition.

When the Beth Din says something different

If the Beth Din said something else, his silence counts as agreement. In fact, when a get is given, it is said that this is a get **without anything attached to it**. If he kept quiet, he has accepted that. Likewise if he wanted 200 and the Beth Din told him he can give the get on condition of 100, he must either object and not go ahead, or, if he keeps quiet and proceeds, he has agreed to 100.

Part 3: The Problem in the Rambam (Hilchot Gerushin 8)

So far, from the laws of kiddushin, it seems there are two levels: ***im***, which works later, and ***me-achshav***, which works now, retroactively. For *me-achshav* and *al menat*, the Rambam holds the laws of conditions **do not apply**: it need not be doubled or stated before the act, "because it's working somehow differently." (Not all Rishonim agree.)

Now to **Hilchot Gerushin, chapter 8, halacha 1**, the main source of the Shulchan Aruch. The Rambam says that a get given with *im* only works later, not when it is given. So if he gave the get in Nisan and said, "If you pay me 200 zuz in Elul, you are divorced," she is not divorced until Elul, even though she holds the get. Therefore:

- he **can change the condition**, add money or take it off;
- if **he dies**, or **the get is destroyed**, before the condition is fulfilled, it does not work.

And then the striking line: ***lo tinasei ad she-yitkayem ha-tenai; ve-im nis'et lo tetze***: she should not remarry until the condition is fulfilled, but if she did, she need not leave.

"Does that make sense?" If the divorce only happens later, how can she stay married to someone else in the meantime? "It's a huge, everyone asks this question": the **Maggid Mishneh** and the **Mishneh LaMelech** among others. Many Rishonim simply leave it as a difficulty.

Four differences between "im" and "me-achshav"

	Im	*Me-achshav / al menat*
1. Can he change the condition?	Yes	No: it already works retroactively
2. If the husband dies first	Not divorced; she needs **chalitza**	Divorced retroactively while he was alive; no yibum needed
3. Must the get still be with her at fulfilment?	Yes: the divorce happens then, and (as in Siman 135-136) she must have the get at the moment it takes effect	No: it does not matter if she no longer holds it
4. Remarrying before fulfilment (Rambam)	Lechatchila not; if she did, she need not leave	**Lechatchila she may**

The first three are straightforward. The fourth is the problem, and on both of its halves many Rishonim disagree.

Part 4: The Rambam's Three Levels (Hilchot Gerushin 9)

The Rambam's own approach emerges in **chapter 9**, which discusses "***harei zeh gittech le-achar zman***," a divorce that simply takes effect at a later time, with no condition attached. "I'm divorcing you, and this will happen later on. I don't say 'if this happens' or 'if you give me this'." The Rambam compares it to, and distinguishes it from, a conditional get. A later halacha there clarifies the difference, and is the key to it all.

The Rabbi noted that a great deal has been written on how to understand this (the **Avi Ezri** among others). "Don't ask me." But the plain reading of the Rambam shows **three levels**:

Level	What it is	Laws of conditions?	How it works
1. *Me-achshav* (and *al menat*)	Divorce **now**, pending fulfilment	No. The Rambam never calls this *gerushin al tenai*. It must only be possible to fulfil, otherwise it simply cannot take effect	Takes effect now. She may remarry lechatchila
2. *Im*	The **middle level**	Yes, all four requirements	The divorce has **begun but not ended**
3. *Le-achar zman*	Divorce **at a later time**	No, it is not a condition at all	Nothing happens now. If he dies, or the get is not in her possession when it takes effect, there is no divorce

The middle level is the Rambam's *chiddush*. With *im*, although the complete divorce happens six months later, **the gerushin have already somewhat begun**. Because it is not complete, she should not remarry. But because the process has begun, "it's like there's been a partial" divorce. That is enough to allow her to stay with a second husband if she married, and for the **children not to be mamzerim**.

So for the Rambam, the laws of conditions (*hilchot tenaim*) operate only in the category of *im*. *Me-achshav* is not *hilchot tenaim*: it works now. *Le-achar zman* is not *hilchot tenaim*: it simply works later. *Im* is a special case where the act works partially but not completely.

"That's a unique *shita* which the Rishonim didn't accept. They all disagreed with him. They said there's no middle ground."

A student remarked that this contradicts everything we intuitively know about conditions. The Rabbi: "Because we're used to learning it in yeshiva, not with the Shulchan Aruch."

Does the Rambam apply this elsewhere?

A student asked whether this applies beyond gittin, for example to the transfer of ownership. The Rabbi suggested how it might: "This is yours if you go to London." Before you go, may you use the item? The Rav would tell you not to, since you have not gone yet. But if you did use it, perhaps it is fine, because the transfer has already somewhat begun though not completed. "It's not how we ever learned in yeshiva."

Part 5: The Shulchan Aruch (Seif 2)

The Shulchan Aruch quotes the Rambam **verbatim**: a get on condition with *im* only takes effect later; even though she holds the get, he can change the conditions; if the get was lost or burnt before the condition was fulfilled, she is not divorced; and *lo tinasei*. The difference between *im* and *al menat* is pure Rambam, "no major *chiddushim* there."

But regarding a get ***me-achshav***, he does **not** follow the Rambam. He rules like the **Ramban** and the **Ran**: even with *al menat*, she **should not remarry**, because the condition may not end up being fulfilled. If she did remarry, they **separate until the condition is fulfilled**. The exception: a condition that is a **negative act** (*shev ve-al ta'aseh*) and **within his control**, for example "on condition that you never go to Australia in your life." No one can force him to go, so she may remarry. The Rambam makes no such distinctions.

"Ve-im nis'et tetze": Beit Shmuel and Taz

The big question is the words ***ve-im nis'et tetze*** in the Shulchan Aruch's section on *im*.

- **The Beit Shmuel** reads them as continuing the previous line: *if the get was burnt or lost* and she remarried, she must leave, because there is no longer a get. The Rambam does not address a case where she married while the get was intact. So the Shulchan Aruch **follows the Rambam**: with *im*, if she remarried, she may stay.
- **The Taz** reads it as a **new statement**: with *im*, if she remarried (even with the get intact), **she must leave**. This requires "putting a full stop" in the text, a slightly more strained reading.

The Taz's proof: the Shulchan Aruch rules that with ***me-achshav***, if she remarried, she must separate. If he followed the Rambam that with ***im*** she may stay, then *im* would be **more lenient than *me-achshav***, which makes no sense, since *me-achshav* is the stronger divorce. So the Shulchan Aruch must be following **all the Rishonim** against the Rambam.

Halacha lema'aseh, as the poskim rule: with an *im* condition, if she remarried, she must separate from him and they must not have children until the condition is fulfilled. If they did have a child, the Rabbi suggested the child would be a ***safek mamzer***: kasher according to the Rambam, a mamzer according to the Rishonim.

Summary of the three levels

"Maybe you want to just write this down":

	Me-achshav / al menat	*Im*	*Le-achar zman*
Takes effect	Retroactively from the giving	When fulfilled	At the stated time
Mishpetei ha-tenaim	Rambam: no. Rosh: yes. Shulchan Aruch (in Hilchot Kiddushin): *stam* like the Rambam, *yesh* like the Rosh	Everyone agrees: yes	Everyone agrees: no; it is not a condition at all
Get destroyed or husband dies before fulfilment	Fine: it works retroactively	The get must still exist	The get must exist and be with her
Remarrying before fulfilment: Rambam	Lechatchila permitted	Lechatchila not; if she did, she stays	Not permitted; if she did, she must leave and the child is a mamzer
Remarrying before fulfilment: Shulchan Aruch	Not lechatchila (Ramban, Ran); if she did, separate, unless a negative condition in his control	Beit Shmuel: like the Rambam. Taz and most poskim: she must leave	Same as the Rambam

"It's just very useful to have the three levels in your head."

The Shulchan Aruch ends Seif 2 by noting that **the date of the get** functions like a condition, which will be discussed in Siman 144. The Rema brings one Rishon who holds that *al menat* is **not** like saying *me-achshav*, and is concerned for that stringency; this too belongs to Siman 144.

Part 6: Paying a Dead Man (Seif 3)

על מנת שתתני לי מאתים זוז מכאן ועד שלושים יום, ומת בתוך שלושים, קודם שנתנה לו, אינה יכולה לקיים התנאי

She cannot fulfil the condition by paying his heirs. Did we not learn that *al menat* can be fulfilled after his death? The answer: he said "give it **to me**." This is a machloket in the Gemara between **Rabban Shimon ben Gamliel**, who allows payment to the heirs, and the **Tanna Kamma**, who holds that "to me" means to him alone. We rule like the Tanna Kamma. By contrast, if the condition were "on condition that you travel to Perth," she could fulfil it after his death; but "give me money" means give it to *him*.

Limbo: no yibum and no freedom

Now the next part of the seif. He said "on condition that you give me 200 zuz" **with no time limit**, and died. Clearly she cannot fulfil it, so the get has not taken effect. But the Shulchan Aruch says not only that she needs yibum or chalitza: **she cannot do yibum, only chalitza**. Why?

"This is the *shita* of the Rambam, again this middle shita." The Shulchan Aruch is deliberately lengthy in the first part of the seif:

- **With a thirty-day limit:** day 1, day 2, day 30 come and go, and she has not given it. The condition is **void**, so there is no get at all. She does yibum or chalitza as normal.
- **With no time limit:** we do not say the condition is void. She is in **limbo**: she has not fulfilled it, but it has not been cancelled either. So the get has not taken effect, and she cannot marry anyone else. But she also **cannot do yibum**, because the condition has not been voided, so "there's this mini get hanging in the air." With a possible get in place, the *yavam* may be her husband's brother whom she is forbidden to marry. The only option is **chalitza**.

Other Rishonim do not see this middle ground: once he died she can never fulfil the condition, so it should be the same as the thirty-day case.

A student asked: why isn't this like an impossible condition, which is void? The Rabbi: at the time it was made, it was entirely possible. "Go to the sky" is impossible from the start. "Give me 200 pounds" was very possible; he just died the next day, and with no time frame, the condition goes on and is never voided.

Part 7: Giving, Forgiving and Substitutes (Seifim 4-5)

Payment against his will

She gave the 200 as he asked, but he would not accept it: he was running away from her. So she threw it into his courtyard, or put it through his letterbox. Is that a valid giving?

- **The Rambam** holds that *min haTorah* giving against his will is a valid giving.
- **Other Rishonim** say it is a ***safek***, since the Gemara leaves it unresolved, so she must leave (*tetze*) if she remarried.

"As we've learned many times," the difference between *pasul* and *safek* is big: *pasul* means don't remarry, but if she did, she may stay; *safek* means they cannot live together, since a child would be a *safek mamzer*.

"It's forgiven"

He said "give me 200," and then within the thirty days said "**I forgive it**" (*machul lach*). The Gemara says she is **not divorced**. Part of his condition was that she should endure the pain (*tza'ar*) of paying. Even though he forgave the money, that aspect was never experienced, so the condition was not fulfilled.

But if he said "**the get works without it, don't worry about it**," that works, even without giving the get again: he has changed the condition and effectively cancelled it. The Shulchan Aruch writes this as *yesh omrim*, but the **Beit Shmuel** says it should not be *yesh omrim*: there is no machloket, everyone agrees.

The **Pitchei Teshuva** brings a machloket about **someone else paying**. If her father paid from his own account, does it work? Is the condition about her pain, so it must be her money (meaning her father would have to give it to her, and she give it to the husband)? Or does the husband ultimately just want the money, so as long as he receives it, it is sufficient?

Paying the value instead (Seif 5)

If she gives the **value** of what was stipulated instead of the thing itself, it does not work until she gives the actual item or he says the get works without it. Here too the Beit Shmuel says it is not really a *yesh omrim*. The Rema brings *yesh omrim* that if **he agrees** to accept the value, it works, since that shows he wanted its financial worth.

"Very good. It was lovely. I enjoyed learning again." The next shiur was set for Wednesday the 17th.

Summary of the Halachot

1. **A conditional get or kiddushin needs the four *mishpetei ha-tenaim***: doubled, positive first, condition before the act, and possible. Otherwise the condition is void and the act stands.
2. **An unfulfilled condition** leaves nothing at all, not even *re'ach ha-get*: she may later marry a Kohen.
3. **A condition not stated at the giving** is not a condition, whoever made the approach (Pitchei Teshuva, Radbaz, against the Maharit). But if the husband told the Beth Din his condition and they forgot to state it, it still binds. If he stays silent when the Beth Din states otherwise, he has agreed.
4. ***Im*** takes effect only when fulfilled: he can change it, his death or the loss of the get cancels it. ***Me-achshav* / *al menat*** works retroactively.
5. **The Rambam's three levels:** *me-achshav* (divorced now), *im* (begun but not completed, so if she remarried she may stay), *le-achar zman* (nothing until then). The Rishonim reject the middle level.
6. **Remarrying before fulfilment:** with *me-achshav*, not lechatchila, and if she did, separate, except for a negative condition in his control (Ramban, Ran, Shulchan Aruch). With *im*, the Taz and most poskim say she must leave; the Beit Shmuel reads the Shulchan Aruch like the Rambam.
7. **"Give me" means him, not his heirs** (Tanna Kamma). With no time limit and he died, she is in limbo: no yibum, only chalitza (Rambam, Shulchan Aruch).
8. **Payment against his will** is valid *min haTorah* for the Rambam; others treat it as a *safek*.
9. **"It's forgiven"** does not fulfil the condition; "the get works without it" cancels the condition (Beit Shmuel: no machloket). Paying the value works only if he accepts it (Rema).

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